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12/30/2002

CONSERVATION RESTRICTION

The undersigned, ESSEX COUNTY GREENBELT ASSOCIATION, INC., a Massachusetts charitable corporation having its principal place of business at 82 Eastern Avenue, Essex, Essex County, Massachusetts 01929, for nominal consideration, hereby grants, with quitclaim covenants, to BTA/BOLT, INC., a Massachusetts charitable corporation having its principal office at 7 Elm Street, Boxford, Essex County, Massachusetts 01921, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on the land located in Boxford and North Andover, Essex County, Massachusetts described in Exhibit A attached hereto and incorporated herein by reference (the "Premises"). Said Essex County Greenbelt Association, Inc., and its successors in title to the Premises are hereinafter referred to as the "Grantors" and BTA/BOLT, Inc., and its successors and permitted assigns are hereinafter referred to as the "Grantees". For Grantors' title to the Boxford portion of the Premises see deed recorded at Book 18117, Page 557, Essex South District Registry of Deeds. For Grantors' title to the North Andover portion of the Premises see Instrument # 49283 recorded in the Essex North District Registry of Deeds.

Whereas, the Premises provides significant scenic, aesthetic, scientific and education value in its present state as a natural area and open space which has not been subjected to development incompatible with said uses; and

Whereas, the Grantors and the Grantees recognize the uniqueness of the Premises as a Massachusetts landscape embodying the special character of the region in which the Premises is located and have the common purpose of conserving the natural and open space values of the Premises for this generation and future generations; and

Whereas, the Premises is adjacent to Boxford State Forest and to other land owned by the Grantors, thereby enhancing the ecological viability of the area and contributing to a corridor of protected open space; and

Whereas, trails on the Premises are used by the general public for passive recreational and educational activities; and

Whereas, the Premises includes approximately 2500 feet of frontage on Towne Pond, and 13 acres of Towne Pond itself, a significant water resource in the Town of Boxford; and

Whereas, the Premises contains and consists of pond edge, open water, a freshwater stream, freshwater wetlands and forested upland, representing a diversity of wildlife habitat; and

Whereas, protecting and preserving rural character, protecting water resources and providing adequate passive recreation are identified as goals of the Open Space and Recreation Plan of the Town of Boxford; and

Whereas, said Open Space and Recreation Plan identifies Conservation Restrictions as one of the techniques to help implement Boxford's open space goals; and

Whereas, conservation of the Premises is consistent with the 1996 Master Plan of the Town of Boxford; and

Whereas, North Andover's 2000 - 2005 Open Space and Recreation Plan includes as goals the protection of valuable water resources, the expansion of existing conservation efforts; the linking of open space and trails, the protection of, landscapes, and the protection of habitat for a diversity of plant and animal species;

Therefore, in order to preserve the Premises in perpetuity in its present natural scenic and open condition, the Grantors conveys to the Grantees a perpetual Conservation Restriction within the meaning of Chapter 184, Section 31 et seq. of the General Laws of Massachusetts, as amended. The terms of this Conservation Restriction are as follows:

1. Prohibited Activities. Except as otherwise herein provided, the Grantors shall neither perform nor permit others to perform any of the following acts or uses on, over or under the Premises:

(a) Construction or placing of any building, tennis court, recreational or play field, landing strip, mobile home, swimming pool, septic system, road, sign, fence, billboard or other advertising display, utilities, conduits, poles, antennas, towers, telecommunications towers, windmills, solar panels or other temporary or permanent structures or facilities on, under, or above the ground;

(b) Dumping or placing of soil or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;

(c) Cutting, removal or destruction of trees, grasses, shrubs or other vegetation;

(d) Mining, excavating, dredging or removal of loam, peat, sand, gravel, soil rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction;

(e) Any commercial or industrial use or any institutional use inconsistent with the purposes of this Conservation Restriction;

(f) Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties and except for cars, trucks and other vehicles used by Grantor or at the direction of Grantor for its maintenance and management purposes, and for other purposes permitted by this Conservation Restriction;

(g) Any use of the Premises, or activity on the Premises, which impairs the natural, scenic, and open condition of the Premises;

(e) Activities detrimental to drainage, including drainage to or from Towne Pond, flood control, water or soil conservation, water quality, or erosion control;

(j) Any other use of the Premises or activity which would impair the conservation values of the Premises unless such use or activity is necessary and desirable for the protection of the conservation values that are subject to this Conservation Restriction;

2. Reserved Rights. All acts and uses not prohibited in paragraph 1 are permissible. Notwithstanding the provisions of paragraph 1, the following acts and uses are also permitted, but only if such uses and activities do not materially impair the purposes of this Conservation Restriction and other significant conservation interests:

(a) Hiking, wildlife observation, cross-country skiing, horseback riding, mountain biking and other passive outdoor recreational and educational activities consistent with the purposes of this Conservation Restriction;

(b) Activities designed for and in conjunction with public use of the Premises for scenic enjoyment, passive recreation, and natural and human history education, including but not limited to the creation of footpaths, boardwalks and the placing of informative signs and benches; and the clearing of trails and other maintenance necessary therewith;

(c) Activities designed to enhance the ecological or natural historical value of the Premises, including the control of exotic plant species, nuisance wildlife and wildlife habitat improvement;

(d) Within forested areas, in accordance with generally accepted forest management practices, (i) selective pruning and cutting to prevent, control, or remove hazards, disease or insect damage, fire, or to maintain trails;

(e) Maintenance, repair, and replacement of the dam located on the Premises;

(f) Such other activities requested by the Grantors and expressly approved by the Grantees as are consistent with the purposes of this Conservation Restriction.

The exercise of any right reserved by the Grantors under this paragraph 2 shall be in compliance with the then-current Zoning By-Law applicable to the Premises, the Wetlands Protection Act (General Laws Chapter 131, Section 40), the Boxford Wetlands Protection By-Law, and all other applicable federal, state and local law. The inclusion of any reserved right in this paragraph 2 requiring a permit from a public agency does not imply that the Grantees take any position on whether such permit should be issued.

3. Access by the Grantees. The Grantees through their duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Premises following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Premises, determining compliance with the terms of this Conservation Restriction and preventing, abating or remedying any violations thereof. The Grantees shall have the right, at their sole expense, to perform any act required to preserve, conserve or promote the natural habitat of wildlife, fish or plants located on the Premises. The Grantees shall have the right to erect and from time to time replace, at appropriate locations near the boundaries of the Premises, suitable signs identifying the Grantees as the holders of this Conservation Restriction.

4. Access by the General Public. The Grantors and the Grantees agree that the public may pass and repass on foot, skis, snowshoes or horseback over the Premises. Use of the Premises by the general public shall be subject to whatever schedule, rules and regulations the Grantors shall determine are appropriate to protect public safety and the natural and scenic values of the Premises. To the extent permitted by law, the Grantors and the Grantees hereby expressly disclaim any duty to maintain the Premises or warn persons who may enter upon the same. Pursuant to M.G.L. c. 21, s. 17c, the Grantors is not liable to any member of the public who uses the Premises for injuries to person or property sustained by such person while on the Premises in the absence of willful, wanton or reckless conduct by the Grantors.

5. Legal Remedies of the Grantees. The rights hereby granted shall include the right to take any and all actions with respect to the Premises as may be necessary or appropriate, with or without order of court, to remedy, abate or otherwise enforce any violations hereof, as well as the right to enforce this Conservation Restriction by appropriate

legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Premises to its condition at the time of this grant (it being agreed that the Grantees may have no adequate remedy at law), and shall be in addition to, and not in limitation of, any other rights and remedies available to the Grantees. The Grantors and the successors and assigns of the Grantors covenant and agree to reimburse the Grantees for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantors or determined by a court of competent jurisdiction to have occurred. By its acceptance, the Grantees do not undertake any liability or obligation relating to the condition of the Premises. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantees, and any forbearance by the Grantees to exercise their rights under this Conservation Restriction shall not be deemed or construed to be a waiver. If any provision of this Conservation Restriction shall to any extent be held invalid, the remainder shall not be affected.

6. Assignment by the Grantees. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantees and their successors and assigns shall have the right to assign their right, title and interest hereunder to a "Qualified Organization" as defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended, provided that such assignee shall also be an eligible donee of a Conservation Restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes.

7. Subsequent Transfers. The Grantors agree to incorporate the terms of this Conservation Restriction by reference in any deed or other legal instrument by which they divest themselves of any interest in all or a portion of the Premises, including without limitation, a leasehold interest.

8. Representations of the Grantees. The Grantees represent that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally

sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

9. Required Notifications of Transfers. The Grantors shall notify the Grantees in writing at least thirty (30) days before conveying the Premises, or any part thereof or interest therein (including a lease). The Grantees shall notify the Grantors in writing at least thirty (30) days before they assign this Conservation Restriction.

10. Notice and Approval With Respect to the Grantors' Activities. Whenever notice to or approval by the Grantees is required under the provisions of paragraphs 1 or 2, the Grantors shall notify the Grantees in writing not less than thirty (30) days prior to the date the Grantors intend to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantees to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantees' approval is required, the Grantees shall grant or withhold their approval in writing within thirty (30) days of receipt of the Grantors' written request therefor.

11. Proceeds from Extinguishment; Eminent Domain. The Grantors and the Grantees agree that the donation of this Conservation Restriction gives rise for purposes of this paragraph to a property right, immediately vested in the Grantees, with a fair market value at that time that is equal to twenty (20) percent of the value of the Premises, as if unrestricted, at that time. If circumstances arise in the future such as render the purposes of this Conservation Restriction impossible to accomplish, this Conservation Restriction can only be terminated or extinguished, whether in whole or in part, by judicial proceedings in a court of competent jurisdiction. If any change in conditions ever gives rise to extinguishment or other release of the Conservation Restriction under applicable law, which extinguishment or release must be accomplished by judicial proceedings in a court of competent jurisdiction, then the Grantees, on a subsequent sale, exchange or involuntary conversion of the Premises, shall be entitled to 20% of the proceeds, subject however, to any applicable law which expressly provides for a different disposition of proceeds. Whenever

all or any part of the Premises or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority then the Grantors and the Grantees shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantors and the Grantees shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed between the Grantors and the Grantees as follows: eighty (80) percent to the Grantors, and twenty (20) percent to the Grantees, which percentages represent the full and fair market values of the respective interests of the Grantors and the Grantees in the Premises which are the subject of this Conservation Restriction immediately after the execution and delivery hereof. Both the Grantors and the Grantees shall use their shares of any such proceeds in a manner consistent with the conservation purposes set forth therein.

12. Binding Effect; Interpretation. The burdens of this Conservation Restriction shall be deemed to run with the Premises, shall be enforceable in perpetuity against the Grantors the Grantors' successors in title to the Premises, and any person holding any interest therein, by the Grantees, their successors and assigns and their duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction. This Conservation Restriction shall be in addition to and not in lieu of any other restrictions or easements of record affecting the Premises. The Grantees are authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction; and the Grantors on behalf of themselves and their successors and assigns appoint the Grantees their attorney-in-fact to execute, acknowledge and deliver any such instruments on their behalf. Without limiting the foregoing, the Grantors and their successors and assigns agree themselves to execute any such instrument upon request.

13. Effective Date. The Grantors and the Grantees intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in the Registry of Deeds.

14. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of

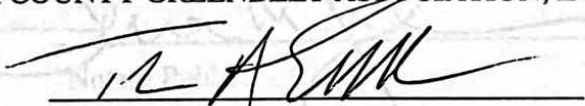
any party holding any interest in the Premises terminate upon transfer of that party's interest, except that liability for acts or omissions occurring prior to transfer, and liability for the transfer itself if the transfer is in violation of this Conservation Restriction, shall survive the transfer.

15. Estoppel Certificates. Upon request by the Grantors, the Grantees shall within thirty (30) days execute and deliver to the Grantors any document requested, including an estoppel certificate, which certifies the Grantors' compliance with any obligation of the Grantors contained in this Conservation Restriction, and which otherwise evidences the status of this Conservation Restriction.

16. Miscellaneous. Approval of this Conservation Restriction pursuant to M.G.L. Chapter 184, Section 32 by any municipal officials and by the Secretary of Environmental Affairs is not to be construed as representing the existence or non-existence of any pre-existing rights of the public, if any, in and to the Premises, and any such pre-existing rights of the public, if any, are not affected by the granting of this Conservation Restriction.

Executed under seal this 30th day of September, 2002.

ESSEX COUNTY GREENBELT ASSOCIATION, INC.


By: Thomas A. Ellsworth

Its: President


By: Arthur C. Hodges

Its: Treasurer

NOTARY PUBLIC, COMMONWEALTH OF MASSACHUSETTS and a person to be
bound by its terms.

, ss.

, 2002

Then personally appeared before me the above-named Thomas A. Ellsworth and
acknowledged the foregoing instrument to be his free act and deed.



Notary Public

My Commission Expires: Feb. 7, 2008

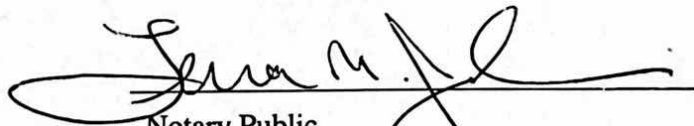
COMMONWEALTH OF MASSACHUSETTS

Suffolk

~~Essex~~, ss.

September 26, 2002

Then personally appeared before me the above-named Arthur C. Hodges and
acknowledged the foregoing instrument to be his free act and deed.



Notary Public

My Commission Expires: 5-19-2006

BTABOLT, INC. hereby accepts this Conservation Restriction and agrees to be bound by its terms.

TOWN OF BOXFORD

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on Nov. 18, 2002 the Selectmen voted to approve the foregoing Conservation Restriction to BTA/BOLT, INC. for the preservation of the natural resources of said Town pursuant to Section 23 of the Town of Boxford, Massachusetts, Chapter 26A, Section 23.

BTABOLT, INC.

By: [Signature]
hereunto duly authorized

[Signature]
[Signature]
[Signature]
[Signature]
[Signature]

APPROVAL BY SELECTMEN

TOWN OF BOXFORD

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on Nov. 18, 2002 the Selectmen voted to approve the foregoing Conservation Restriction to BTA/BOLT, Inc. for the preservation of the natural resources of said Town pursuant to Massachusetts General Laws Chapter 184, Section 32.

Robert H. Cobb
Neil J. Plamondon
Charles J. Carleton
L. D. Wason
Barbara S. Jones

APPROVAL BY SELECTMEN
TOWN OF NORTH ANDOVER

We, the undersigned Board of Selectmen of the Town of North Andover, Massachusetts, hereby certify that at a meeting duly held on _____, 2002 the Selectmen voted to approve the foregoing Conservation Restriction to BTA/BOLT, Inc. for the preservation of the natural resources of said Town pursuant to Massachusetts General Laws Chapter 184, Section 32.

Wendy Wakeman

James M. Kincher

Thomas C. Smedley

Susan M. Dattmaier

Donald B. Stem

APPROVAL BY SECRETARY

The undersigned Secretary of the Executive Office of Environmental Affairs of the Commonwealth of Massachusetts hereby certifies that the foregoing Conservation Restriction to the Essex County Greenbelt Association, Inc. and BTA/BOLT, Inc. has been approved in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32

Date: _____

12/19/02

Bob Durand

Robert Durand, Secretary, Executive Office
of Environmental Affairs